

Stereo. H C J D A 38.

Judgement Sheet

IN THE LAHORE HIGH COURT

MULTAN BENCH, MULTAN

JUDICIAL DEPARTMENT

Criminal Appeal No. 124 of 2020
(Ghulam Mustafa, etc. v. The State, etc.)

&

Criminal Revision No. 68 of 2020
(Wahid Bakhsh v. The State, etc.)

JUDGEMENT

Date of hearing:	04.12.2025
Appellant by:	Mr. Muhammad Imtiaz, Advocate
State by:	Mr. Tanvir Haider Buzdar, ADPP
Complainant by:	Ch. Riasat Ali, Advocate

MUHAMMAD JAWAD ZAFAR, J.: Ghulam Mustafa and Muhammad Hafeez (“**appellants**”) have assailed the vires of the judgement dated 20.02.2020 (“**impugned judgement**” or “**impugned judgement dated 20.02.2020**”), passed by the learned Additional Sessions Judge, Mailsi (“**trial court**”), arising out of a crime report bearing FIR No. 345 of 2019 dated 17.05.2019, for the offences under Section 302, 201¹ and 34 of the Pakistan Penal Code 1860 (“**PPC**”), registered with Police Station Mitroo, Mailsi, Vehari (“**crime report**” or “**FIR**”), whereby the learned trial court, while acquitting co-accused Muhammad Yasin and Abu-ul-Hassan, convicted the appellants on the allegations of committing *qatl-e-amd* of daughter of the complainant Wahid Bakhsh (PW-6), namely, Sajida Mai (“**deceased**”). The learned trial Court convicted and sentenced the appellants as under:

Muhammad Hafeez:

Under Section 302(b) and 34 of the PPC to imprisonment for life as ta’zir. Along with award of compensation of PKR. 100,000/- to the legal heirs of the deceased, which amount to be recoverable as arrears of

¹ **Note:** offence under Section 201 of the PPC was incorporated in the crime report *vide* *Zimni* No. 52 dated 23.09.2019.

land revenue, and in default thereof, to further undergo simple imprisonment for (6) months;

Under Section 201 of the PPC to rigorous imprisonment of seven (7) years, with fine of PKR. 50,000/-, and in default thereof, to further undergo simple imprisonment of three (3) months.

Ghulam Mustafa:

Under Section 302(b) and 34 of the PPC to imprisonment for life as ta'zir. Along with award of compensation of PKR. 100,000/- to the legal heirs of the deceased, which amount to be recoverable as arrears of land revenue, and in default thereof, to further undergo simple imprisonment for (6) months;

Under Section 201 of the PPC to rigorous imprisonment of seven (7) years, with fine of PKR. 50,000/-, and in default thereof, to further undergo simple imprisonment of three (3) months.

Benefit of Section 382-B of the Code was extended to the appellants.

2. Being discontented with their conviction and sentence, the appellants have preferred this appeal, filed under Section 410 of the Code of Criminal Procedure 1898 (“**Code**” or “**Cr.P.C**”), before this Court. Whereas, complainant Wahid Bakhsh (PW-6) has instituted criminal revision for enhancement of sentence, in terms of Sections 435 and 439 read with Section 561-A of the Code. Since both the matters have arisen out of the same impugned judgement, they are being decided through this single judgement.²

3. The case, as portrayed by the prosecution in the crime report, is that the complainant (PW-6) was telephonically contacted and informed by appellant Hafiz Muhammad Hafeez that his daughter, i.e., the deceased Sajida Mai, was not present in the house. Upon receipt of the news pertaining to his daughter missing, the complainant (PW-6), along with Muhammad Bukhsh (given up) and Abdul Khaliq (not produced), boarded a motorcycle and reached the house to inspect for themselves, but they could not find her at her residence. Due to such reason, he (PW-6) developed a strong belief that his daughter was murdered by way of torture by the appellants

² See “*Qasim Mahmood v. The State*” (2017 PCr.LJ 463 Peshawar), wherein it was, *inter alia*, held that ‘[i]n absence of any express barring clause in Cr.P.C. the court, in exercise of its inherent power, can decide such two petitions, through common judgment, fate of which has strong bearing on fate of other...So disposal of criminal appeal against conviction and criminal revision for enhancement of sentence, through common judgment is not an illegality or material irregularity which may vitiate the proceedings, so recorded’.

and acquitted co-accused Muhammad Yasin, and her dead body was concealed by them. The complainant (PW-6) kept searching for the remains of his daughter, and eventually, on 17.05.2019, at about 06:00 a.m., he (PW-6), along with Muhammad Bukhsh (given up) and Abdul Khaliq (not produced), while searching in the surrounding areas of Maari Mitroo, discovered the dead body of the deceased lying in a maize crop of one Mazhar Hussain Ghalvi. The discovery of the corpse, culminated with strong suspicion, led to the registration of the crime report against the appellants and co-accused persons on 17.05.2019.

4. Subsequent to the registration of the crime report, due to want of satisfaction with the investigative process, the complainant (PW-6) moved an application to the office of District Police Officer (“DPO”), Vehari, for recording his supplementary statement, wherein it was disclosed that on 10.08.2019, he (PW-6) was at his place of residence, when he was visited by Khuda Bukhsh (given up) and Ghulam Haider (PW-8), both of whom disclosed that on 13.05.2019, at about 11:00 p.m., they went to the house of the father of appellant Hafiz Muhammad Hafeez, namely, Ahmad Yar, for a religious ritual. Upon reaching, they witnessed a woman lying on the ground, while the father of the said appellant was sitting on a cot outside his house, and multiple people were also present there. They inquired from Ahmad Yar regarding the same and were informed that his daughter in law, namely, deceased Sajida Mai, was suffering from fits, thereafter, they were instructed to come back for the religious ritual on the following day. It was further stated in the application that on 13.08.2019, at about 05:00 p.m., witnesses Haji Faiz Bukhsh (PW-9) and Allah Bukhsh (given up), disclosed that appellant Hafiz Muhammad Hafeez made an extra judicial confession before them, wherein he confessed to the commission of offence, and named his droogs, with whose legion, he committed the offence.

5. After the completion of investigation, *challan*/police report in terms of Section 173 of the Code was submitted before the learned trial court, wherein the appellants, along with Abu-ul-Hassan, were *challan*'ed, whereas, the name of accused Muhammad Yasin was placed in column No. 2. Irrespective of the above, the appellants along with both the co-accused persons were summoned to face trial by the learned trial court, and formal charge was framed against them, to which all four (4) pleaded not guilty and claimed trial. To prove its case, as many as ten (10) witnesses were produced by the prosecution, and the first investigating officer Ijaz Ahmad (CW-1) was called to appear as a court witness by the learned trial court. By tendering in Forensic Histopathology Report dated 08.08.2019 (Exh.PW), Forensic DNA & Serology Analysis Report dated 26.12.2019 (Exh.PY), and Forensic Toxicology Analysis Report dated 23.07.2019 (Exh.PX), the prosecution gave up PWs namely Khuda Bukhsh son of Ahmad Yar, Khuda Bukhsh son of Allah Dita, Allah Bukhsh, and Muhammad Faisal 713/C, being unnecessary and closed its evidence.

6. Thereafter, the statements of the appellants, in terms of Section 342 of the Code, were recorded, wherein they pleaded their innocence; however, neither opted to appear as their own witnesses under subsection (2) of Section 340 of the Code. They did, though, tender a certified copy of Const. (W) P. No. 19347 of 2019, bearing title "Abdul Majeed v. Additional Inspector General of Police, etc.", along with Order dated 16.12.2019, passed by an Honourable Judge-in-Chambers of this Court, and closed defence evidence. On the conclusion of trial, the learned trial court, as stated hereinabove, while acquitting co-accused Muhammad Yasin and Abu-ul-Hassan, convicted the appellants as detailed hereinabove in paragraph No. 1 of this judgement.

7. Arguments heard; record perused.

8. It is discernible from scrutinization of the material available on the judicial file that the unfortunate incident, wherein the

deceased lost her life, went unwitnessed, and the case of the prosecution, in its entirety, hinges on circumstantial evidence. This Court is cognizant that when a case rests solely on such type of evidence, extraordinary care and caution is required while reappraising evidence.³ And while doing so, if this Court comes to the conclusion that the chain of evidence is like a well-knit chain and there is no break therein, and the circumstances are such that the only logical hypothesis is that innocence of the accused cannot be suggested, the case is fit for conviction of the accused person on such conclusion; however, if the Court finds that there is a missing link in the chain, the same renders it unreliable,⁴ and the conviction cannot be sustained.⁵ The crucial piece of evidence on which the case of the prosecution hinges upon is the registration of the crime report; recovery of the corpse of the deceased; identification of the corpse, evidence of *wajtakar* and extra-judicial confession; medical evidence; forensic evidence; call data record (“**CDR**”); and, recoveries. Each of these is addressed in turn.

9. The evidence of the prosecution was meticulously scrutinized and it is evident that despite the complainant (PW-6) becoming cognizant *qua* his daughter, the deceased, missing on 13.05.2019 at about 11:00 p.m., the crime report, per column No. 1 of the FIR, got registered at 11:30 a.m. on 17.05.2019. On the face of it, there is delay of four (4) days in setting the machinery of law into motion and according to column No. 5 of the crime report, no explanation has been rendered explaining why the crime report was not lodged as soon as the complainant became aware that his daughter was missing. Not only was no plausible explanation furnished by the prosecution or its witnesses, but the circumstances surrounding the

³ See “*Naveed Asghar v. The State*” (PLD 2021 Supreme Court 600).

⁴ See “*Hashim Qasim v. The State*” (2017 SCMR 986); “*Azeem Khan v. Mujahid Khan*” (2016 SCMR 274); and, “*Imran alias Dullay v. The State*” (2015 SCMR 155).

⁵ See “*Naveed Asghar v. The State*” (PLD 2021 Supreme Court 600); “*Imran v. The State*” (2015 SCMR 155); “*Muhammad Hussain v. The State*” (2011 SCMR 1127); “*Ibrahim v. The State*” (2009 SCMR 407); “*Barkat Ali v. Karam Elahi*” (1992 SCMR 1047); “*Saeed Ahmad v. Muhammad Irfan*” (PLD 1986 Supreme Court 690); and, “*Karamat Hussain v. The State*” (1972 SCMR 15).

registration of the crime report dated 17.05.2019 are further belied by the inquest report, which records in Column No. 3 that the police had already received information regarding the unnatural death of the deceased, Sajida Mai, on 13.05.2019, four (4) days before the registration of the crime report. This conundrum stood unresolved since no cogent or legal explanation has been furnished by the prosecution. Therefore, this Court is firm of the view that the inordinate delay of almost four (4) days in the registration of the crime report speaks volumes against the veracity of the version of the prosecution, and due to such reason, the possibility of fabricating a false, vexatious and concocted narrative cannot be ruled out.⁶

10. This aforementioned aspect not only casts doubts about the case of the prosecution but further, calls into question the surrounding circumstances pertaining to the recovery of the corpse. It needs no reiteration that Article 129 of the Qanun-e-Shahadat Order 1984 (“QSO”) permits this Court to presume facts based on the natural course of human behaviour or natural events, and any conduct deviating from the usual or expected human conduct is indicative of the fact that the witness was not present at the scene of the crime.⁷ This provision does not merely apply to the prosecution and its witnesses, but is also applicable to the accused person(s).⁸ As enunciated earlier, the complainant (PW-6), in the crime report, as well as later on in his examination-in-chief, admitted that he became aware of his daughter's absence, and had strong suspicion on the same day when he discovered the same. Yet, despite understanding the gravity of the situation, he (PW-6), refrained from informing the local police at the earliest. Instead, he (PW-6), along with Muhammad Bukhsh (given up) and Abdul Khaliq (not produced), went out on a frolic and eventually found the corpse of the deceased on 17.05.2019,

⁶ See “*Muhammad Jahangir v. The State*” (2024 SCMR 1741); “*Muhammad Nawaz v. The State*” (2024 SCMR 1731); and, “*Amir Muhammad Khan v. The State*” (2023 SCMR 566).

⁷ See “*Ejaz Ahmed v. The State*” (2025 YLR 451 Lahore (dB)).

⁸ See “*Mst. Rukhsana Begum v. Sajjad*” (2017 SCMR 596).

at or about 06:00 a.m., i.e., four (4) days after she had vanished under mysterious circumstances. Due to the above, it begs the question as to why the matter was not reported to the police at the earliest, even after the corpse was found at the given time and date. No explanation in this regard was tendered by the prosecution. Akin to the above, the name of the complainant (PW-6) does not find any mention in the inquest or the autopsy reports as a witness to the identification of the deceased before her post-mortem examination. Although the said reports are utilized by the Court to determine whether the occurrence was seen or otherwise, and in this *lis*, it is not disputed that the same was unseen, however, at the same time sight cannot be lost of the fact that had the complainant (PW-6) been one of the persons who had discovered and helped in recovering the corpse of the deceased, he would have been a witness to the identification of his own daughter's dead body. It would not be out of place to observe herein that the unascertained aspects, as highlighted above, could have been addressed, had the prosecution produced Muhammad Bukhsh (given up) and Abdul Khaliq (not produced), but the needful was not done, thereby amounting to withholding of best evidence in terms of Article 129(g) of QSO, which provides that this Court is well within its right to infer an adverse inference when any piece of evidence within the grasp of a party, if not produced by them without sufficient reason.⁹ The question *qua* recovery of the dead body and subsequent identification does not end there. The first investigating officer Ijaz Ahmad Inspector (CW-1) appeared and deposed before the learned trial court that he received information pertaining to the demise of the deceased and thereafter, he reached at Mouza Mari Mitroo, place of recovery of the corpse, and after carrying out the necessary proceedings, he handed over the corpse to Taslim Naz 182/LC (PW-2) and one Sajid Sultan 849/C (not produced). Though the receipt of the dead body for getting a post-mortem examination was also deposed by

⁹ See "*Muhammad Anwar v. The State*" (2025 SCMR 45).

Taslim Naz 182/LC (PW-2). According to her (PW-2) cross-examination, ‘*We reached at THQ Mailsi at 2:15 p.m.*’, which stands contradicted by the autopsy report, wherein it is stated that the corpse reached the mortuary at 02:00 p.m., and the autopsy got conducted at 02:15 p.m. The aforementioned appraisal of evidence not only highlights the lacunas in the case of the prosecution, which diminishes the probative value of the evidence discussed *supra*, and also lends credence to the view that the prosecution has concealed the actuality of the mode and manner in which the events took place, and the witnesses were planted, to guise the defects in its case, at a later stage. These aspects, in and of themselves, shake the entire edifice of the case of the prosecution and shatter the chain of circumstances.

11. The deliberation made hereinabove further calls into question the identification of the dead body of the deceased and medical, as well as forensic evidence. Before delving any further, it would be advantageous to briefly discuss herein that when a person dies, various post-mortem changes take place in his body, which consist of pallor mortis, algor mortis, rigor mortis, putrefaction or decomposition and skeletonisation. In this *lis*, this Court is concerned with the stage of putrefaction and since the same has not been defined in any statute book, recourse was taken to books on medical jurisprudence. In the “Medical Jurisprudence and Toxicology”, Modi scribes that ‘*Putrefaction is a certain sign of death. it is a slow process and consists of softening and liquefaction brought about by the digestive action of enzymes, released after death from tissue cells*’. He goes on to clarify that the ‘*The rate of putrefaction in the internal organs varies greatly owing to the differences in their structure as regards the muscular and fibrous tissue firmness, density and moisture*’ and provides a table of two categories of organs: the first comprises of those which putrefy soon, while the second class consists of those which putrefy after lapse of considerable time. Those which fall within the first category are the larynx and trachea, brain of

infants, stomach, spleen, omentum and mesentery, liver, and the gravid uterus. In the second category, the oesophagus, diaphragm, heart, lungs, kidney, bladder, blood vessels, uterus, and prostate, are mentioned. Likewise, in “Parikh’s Textbook of Medical Jurisprudence Forensic Medicine and Toxicology”, the organs are classified by C. K. Parikh into two sets: on one end he lists down those that reach the putrefaction stage early, and on the other, he points out those that putrefy at a later stage. He writes that:

‘The organs in the first group putrefy in 24-48 hours while those in the second group in 2 to 3 weeks.

Early Putrefaction:

(1) Larynx and trachea (2) Brain and infants (3) Stomach (4) Intestines (5) Spleen (6) Omentum and mesentery (7) Liver (8) Adult brain.

Late Putrefaction:

(9) Heart (10) Lungs (11) Kidneys (12) Bladders (13) Oesophagus (14) Pancreas (15) Diaphragm (16) Blood Vessels (17) Prostate, testis (18) Non-gravid uterus, ovaries’.

He goes on to state that the ‘[t]he organs in the first group putrefy in 24-48 hours while those in the second group in 2 to 3 weeks’. This observation is in consonance with the law laid down by the Honourable Supreme Court of Pakistan in the case of “Muhammad Abid v. The State”,¹⁰ wherein it was held that ‘*The advance stage of putrefaction as described in Post Mortem report begins five to ten days or more*’. It is the case of the prosecution that the deceased died on 13.05.2019, whereas the matter was reported and medical examination of the deceased was conducted by Dr. Sadaf Shahid (PW-5) on 17.05.2019, i.e., four (4) days after the demise of the deceased. Dr. Sadaf Shahid (PW-5) testified before the learned trial court, which deposition was duly supported by the autopsy report, that the corpse of the deceased was received in the mortuary on 17.05.2019 at 02:00 p.m., complete police documents arrived at 02:15 p.m., and the autopsy was conducted immediately. The findings, as per the post-mortem report, are that the corpse of the deceased was

¹⁰ PLD 2018 Supreme Court 813.

highly putrefied. So much so, it is mentioned therein that the cranium and spinal cord, thorax, abdomen (peritoneum, mouth pharynx and oesophagus, diaphragm, pancreas), external genitalia, were concluded to be putrefied, while the tongue was protruded and lots of maggots were coming out of the corpse of the deceased. In other words, advanced stages of putrefaction were observed by Dr. Sadaf Shahid (PW-5) on the person of the deceased, including on organs classified by medical jurists as those which putrefy late, and the corpse was found highly decomposed. When the aforementioned medical jurisprudence, as well as the law laid down by the Honourable Supreme Court of Pakistan, are read in conjunction with the autopsy report, it raises the question as to how the corpse of the deceased was identified by the witnesses of the prosecution considering that majority of it was at an advanced stage of putrefaction and had started to decompose. This in and of itself brings into dispute the theory of the prosecution pertaining to the demise of the deceased, and in addition thereto, the only logical conclusion which this Court can reach, based on the above, is that the physical state in which the corpse was at the time of post-mortem examination is not consistent with the date of demise of the deceased, as mentioned by the witnesses of the prosecution, be it in the crime report, or their depositions; on the contrary, the date and time of death, in all actuality, was much earlier than what was suggested by the prosecution witnesses. All the same, Dr. Sadaf Shahid (PW-5) deposed that it was not possible to determine the cause of death, even after receiving the Forensic Histopathology Report dated 08.08.2019, pertaining to the same wherein it was stated that cellular and nuclear details reduced to granular debris, and no injury or mark around the neck or any part of the body was visible, so, no opinion can be expressed. In other words, the forensic report and opinion of Dr. Sadaf Shahid (PW-5) do not lend any support to the version of events as narrated by the prosecution through its witnesses regarding the purported torture and throttling/strangulation of the deceased by the

appellants. Furthermore, the Forensic Toxicology Analysis Report dated 23.07.2019 (Exh.PX) discloses that no drugs or poison was detected. Similarly, the Forensic DNA & Serology Analysis Report dated 26.12.2019 (Exh.PY), provides that there was no DNA of the appellants found on the items, which could have connected them with the commission of the offence as alleged against them. In “*Khurram v. The State*”,¹¹ the Honourable Supreme Court of Pakistan observed that the advanced stage of putrefaction of the dead body, with elimination of facial features, without DNA analysis, represented a real issue regarding the identity of the corpse. In totality of it all, it can safely be concluded that the medical evidence available on record negates the version of events put forth by the prosecution and the conviction of the appellants cannot be sustained based thereon. Even otherwise, medical evidence is corroborative in nature and can merely confirm the seat of injuries, its duration, the nature of injuries, and the kind of weapon that was used to inflict them, but it cannot disclose the identity of the assailant or connect the accused with the commission of the offence.¹²

12. The next pieces of evidence put forth by the prosecution to secure the conviction of the appellants from the learned trial court were that of *wajtakar* and extra-judicial confession of appellant Hafiz Muhammad Hafeez. The probative value of evidence in the nature of *wajtakar* rests on the doctrine of *res gestae* in view of Article 19 of QSO. The doctrine of *res gestae* is based upon the assumption that statements of witnesses that constituted part of the *res gestae* are attributed a certain degree of reliability because these were contemporaneous making them admissible by virtue of their nature and strength of their connection with a particular event and their ability to explain it comprehensively. In the present case, it had been alleged by the prosecution that Khuda Bukhsh (given up) and Ghulam

¹¹ 2019 SCMR 1317.

¹² See “*Sajjan Solangi v The State*” (2019 SCMR 872).

Haider (PW-8) visited the complainant (PW-6) on 10.08.2019, and disclosed that on 13.05.2019, at or about 11:00 p.m., they paid a visit to the house of the father of appellant Hafiz Muhammad Hafeez, namely, Ahmad Yar. They inquired from Ahmad Yar as to why a woman was lying on the ground, to which the latter responded that she, namely, deceased Sajida Mai, was his daughter in law and was suffering from fits. However, the said witnesses remained mum until 10.08.2019, which does not appeal to reason. In other words, despite having knowledge of the death of the deceased shortly thereafter, the said witnesses refrained from informing the complainant (PW-6) about what they allegedly saw and heard for a considerable period of nearly three (3) months. Furthermore, as per the cross-examination of Muhammad Ishfaq Ahmad Gill, Inspector DIB (PW-10), ‘*The complainant had verbally informed me that he had informed about the story of Wajj-Takkar after delay of six days because of Eid holidays, however, I had not written the said fact in my case diaries*’, for which no explanation has been provided. As such, their evidence is not worth relying upon.¹³

13. Adverting to the extra-judicial confession purportedly made by the appellant Hafiz Muhammad Hafeez in front of prosecution witnesses Haji Faiz Bukhsh (PW-9) and Allah Bukhsh (given up) on 12.08.2019 at or about 04:00 p.m., suffice to observe that it is a settled proposition of criminal jurisprudence that an extra-judicial confession is an inadmissible piece of evidence;¹⁴ and even otherwise, the prosecution ought to have produced the said appellants before the Court of Magistrate for getting their confession recorded in accordance with the law, which it failed to do so. Consequently, said piece of evidence is discarded. Moreover, the supplementary statement of the complainant (PW-6), through which these facts were first introduced was belatedly recorded. In this regard, it is trite that

¹³ See “*Muhammad Waseem v. The State*” (2012 SCMR 387).

¹⁴ See “*Rehmatullah v. The State*” (2024 SCMR 1782); “*Sajjan Solangi v. The State*” (2019 SCMR 872); and, “*Muhammad Bashir Khan v. The State*” (2017 MLD 230 (dB)).

although the crime report is not supposed to be taken as the last word of the prosecution, however, nonetheless, a supplementary statement is essentially a statement under Section 161 of the Code and cannot be read in continuation thereof, thus, heavy responsibility casts upon the prosecution to satisfactorily explain its initial failure, improving upon its knowledge to justify the same¹⁵ but the same was not done in this case.

14. Likewise, the evidence of CDR (Exh.CW1/C) and testimony of Muhammad Ishfaq Ahmad Gill Inspector DIB (PW-10) do not connect the appellants with the commission of the offence, nor do they prove their presence at the place of occurrence because it is trite that *‘[A]lthough any accused or witness can claim or admit possession and use of any SIM "Subscriber Identity Module" by him or anybody else at the time of occurrence or any other relevant time yet mere such claim or admission is not sufficient for relying on CDR "Call Data Record" of said SIM because CDR only shows use of SIM in territorial/geographical jurisdiction of "Cell Phone Tower" installed by telecom operator and does not disclose that who is actually/exactly carrying and using said SIM’*.¹⁶ In other words, CDR is not a conclusive piece of evidence for the purpose of determining and establishing the presence of any person at some exact locale/position/place.¹⁷

15. Insofar as recoveries made from the appellants are concerned, it is an admitted position that no independent witnesses from the locality were associated with the search and seizure as mandated by Section 103 of the Code;¹⁸ resultantly, the recoveries were rightly discarded by the learned trial court.

¹⁵ See *“Rafiqat Ali v. The State”* (2022 SCMR 1107).

¹⁶ See *“Mst. Saima Noreen v. The State”* (PLD 2024 Lahore 522 (FB)).

¹⁷ See *“Mst. Saima Noreen v. The State”* (PLD 2024 Lahore 522 (FB)).

¹⁸ See *“Muhammad Azam v. The State”* (PLD 1996 Supreme Court 67 (5-MB)).

17. Regarding the motive aspect of the case, suffice to observe that the same was belatedly introduced by the prosecution and no cogent evidence has been furnished by the prosecution to substantiate the motive, and considering that motive is a double edged sword, the same can be used to falsely implicate an innocent person for oblique and sinister reasons;¹⁹ therefore, the same is discarded.²⁰

18. From the deliberation made hereinabove, the chain of circumstantial evidence appears irreparably broken, with multiple missing links that snap its continuity and render it wholly unreliable. In the present *lis*, the prosecution has failed to discharge the settled mandate governing cases based on circumstantial evidence, as the chain is neither complete nor of such conclusive character as to unerringly point towards the guilt of the appellants. The chronological sequence of events itself does not appeal to reason. It is by now a well-settled principle of criminal jurisprudence that, for extending the benefit of doubt, it is not necessary that numerous infirmities must exist; even a single circumstance creating reasonable doubt in the mind of the Court is sufficient to entitle an accused to acquittal.²¹

19. Accordingly, **criminal appeal No. 124 of 2020** of appellants Ghulam Mustafa and Muhammad Hafeez is **accepted** in toto; conviction and sentence recorded by the learned trial court *vide* judgement dated 20.02.2020 is **set aside**; the appellants are **acquitted** of the charge levelled against them in crime report bearing FIR No. 345 of 2019 dated 17.05.2019, registered with police station Mitroo, Mailsi, Vehari. For the same reasons, **Criminal Revision No. 68 of 2020** is found bereft of merits, and is hereby **dismissed**. The

¹⁹ See "*Muhammad Hassan v. The State*" (2024 SCMR 1427).

²⁰ See "*Iftikhar Hussain alias Kharoo v. The State*" (2024 SCMR 1449).

²¹ See "*Khair Muhammad v. The State*" (2025 SCMR 1599); "*Muhammad Bilal v. The State*" (2025 SCMR 1580); "*Obaidullah v. The State*" (2025 SCMR 1558); "*Sajjad Hussain v. The State*" (2022 SCMR 1540); "*Abdul Ghaffoor v. The State*" (2022 SCMR 1527); "*Kashif Ali v. The State*" (2022 SCMR 1515); "*Muhammad Asbraf v. The State*" (2022 SCMR 1328); "*Muhammad Imran v. The State*" (2020 SCMR 857); "*Mst. Asia Bibi v. The State*" (PLD 2019 Supreme Court 64); "*Abdul Jabbar v. The State*" (2019 SCMR 129); "*Muhammad Mansba v. The State*" (2018 SCMR 772); "*Gul Dast Khan v. The State*" (2009 SCMR 431); "*Tariq Pervaiz v. The State*" (1995 SCMR 1345); and, "*Daniel Boyd (Muslim Name Saifullah) v. The State*" (1992 SCMR 196).

appellants, if not required in any other case, are directed to be released forthwith.

(MUHAMMAD JAWAD ZAFAR)
JUDGE

Approved for Reporting

JUDGE

*Ejaz/**